promises of preserving their diversity. It is impossible to know, without a draft, whether it would particularly benefit a community such as the Hindus. It seems unlikely because Hindu law is already codified to a significant extent. Depending on what the UCC promises, it could allow same-sex marriage for Hindus, or further simplify succession laws for women, but if it's 'uniform', there is no exclusive benefit to Hindus.

FLAVIA AGNES: Many women who faced injustice under personal laws have approached the courts and got their grievances addressed and resolved. A lot of changes within personal laws have come about through court intervention, including striking down triple talaq, discriminatory provisions within Christian divorce laws or even Hindu personal laws. This I feel is a better and more acceptable way of securing gender justice. We do not require a UCC to bring in gender justice.

ASADUDDIN OWAISI: Marriage in Islam is different to what it is in other religions: it's a contract based on consent of both parties. Spouses have rights on each other; children and parents have obligations to each other. The UCC will obliterate this system of rights and replace it with majoritarian values.

> **"A lot of changes in personal laws have come through court intervention. This, I feel, is a much better way of ensuring gender justice" –FLAVIA AGNES**

Unlike what the BJP leaders are professing, Muslim women don't need UCC. They have the same legal remedies as non-Muslim women, be it under the Protection of Women from Domestic Violence Act, 2005, or Section 125 of CrPC, 1973 (maintenance of wives, children and parents), and rights under the Dissolution of Muslim Marriages Act, 1939. In fact, Muslim women have additional remedies. They can divorce by mutual consent. They can put conditions and choices in the nikahnama, violation of which is a breach of contract. A study by Flavia Agnes shows Muslim women receive higher maintenance under the Muslim Women (Protection of Rights on Divorce) Act, 1986, than that availed under Sec. 125 of CrPC.

Per NFHS-5 data, 1.9 per cent Muslim women said they were in a polygamous marriage, compared to 1.3 per cent Hindu women who admitted to it, a difference of just 0.6 percentile points. Even the 21st Law Commission said polygamy is rare among Indian Muslims. Laws in other religions forbid a man to have a second wife. But they still marry, and the second woman is often called a mistress. In Islam, she is recognised as a wife, entitled to maintenance, a separate house. The government criminalised triple talaq, which was rarely practised. The law has resulted in a large number of Muslim women being deserted by husbands. There should be a law against deserting married women. There are 2 million Hindu, 200,000 Muslim, and 80,000 Christian married women whose husbands have deserted. ■

Q. DO YOU FEEL POLITICS TRUMPS JUSTICE IN THE UCC AS ENVISAGED NOW? MANY PARTIES SAY IT IS AN ELECTORAL PLANK FOR THE BJP AND THAT IT MILITATES AGAINST THE DIVERSITY OF INDIA

PINKY ANAND: The celebration of diversity in India does not necessarily mean a fragmented society. The UCC will not impact religious freedoms, only religious constraints that parts of our citizenry are bound by—for example, the differences in laws of inheritance, maintenance, custody. However, justice extends beyond legal consistency. It includes access to legal resources, a fair and impartial court system, effective law enforcement, human rights protection, and social and economic elements that influence an individual's capacity to obtain justice. To secure justice, these structural difficulties and obstacles in the legal system must be addressed. It necessitates a holistic strategy. The UCC can help to promote justice by providing legal consistency, but it is also vital to address deeper systemic challenges.

HASINA KHAN: The push for implementing the UCC seems to be to influence vote banks for the 2024 election. The State has otherwise remained regressive and problematic regarding questions of gender justice, whether in the case of Gujarat genocide survivor and rape victim Bilkis Bano, or the recent protests by Indian women wrestlers against sexual harassment by Brij Bhushan Sharan Singh. It has fuelled communal politics as well. I feel